POST COUNCIL MEETING

June 22, 2021 at 10:00 a.m.

Public Safety Education & Training Center
410 West 9800 South 3rd Floor Council Room
Sandy, UT 84070

Agenda

- Welcome: Chairman Wade Carpenter
  00:00 – 00:50

- Approval of March 16, 2021 Minutes: Chairman Wade Carpenter
  00:50 – 01:25

- Quarterly Reports: Lt. Jaclyn Moore & Lt. Christian Newlin
  01:30 – 05:17

- 2021-2022 Quarter One Curriculum Update: 05:19 – 09:33
  - Special Functions Officer/Law Enforcement Officer: Lt. Christian Newlin

- Disciplinary Cases: Attorney Renee Spooner 09:37 – 09:51
  - Elisa Allen 10:03 – 13:46
  - Zechariah Harger 13:48 – 17:37
  - Michael Hayes 17:45 – 21:27
  - Brandon La Verne 21:30 – 30:44
  - Dustin Long 30:51 – 36:32
  - Chris Loveless 36:37 – 40:29
  - Herson Majano 40:33 – 49:03
  - Jeremy Miller 49:12 – 52:40
  - Jack Stephenson 52:44 – 56:58
  - Benjamin Stowell 57:04 – 1:05:09
  - Taffin Strong 1:05:13 – 1:09:16
  - Richard Taylor 1:09:19 – 1:20:34
  - Agustin Torres 1:20:46 – 1:24:04
  - James Vance 1:24:08 – 1:29:56

- ❖ Inservice Annual Training Hours Requirement Discussion: Director Scott Stephenson 1:30:13 – 1:40:03
  - 16 hours (de-escalation, defensive tactics, mental health)
  - Autism Training
  - Domestic Violence Training
  - Asset Forfeiture
  - 40 hours Training Requirement

- ❖ Lawful Permanent Residents Update: Director Scott Stephenson
  1:40:06 – 1:43:44

- ❖ Sub-Committee Meeting Update: Dir. Scott Stephenson 1:43:46 – 2:02:15
  - Use of Force Policy
  - K-9 Policy

- ❖ Medical Marijuana and Law Enforcement Discussion: Director Scott Stephenson 2:02:17 – 2:22:24

- ❖ Utah Code Ann. 53-6-211(1)(g) Discussion: Director Scott Stephenson
  2:22:24 – 2:31:14

- ❖ Dispatch Qualifications: Captain Alex Garcia
  2:31:16 – 2:48:08

- ❖ NPOST: Captain Alex Garcia
  2:48:10 – 2:53:28

- ❖ Recognition: Director Scott Stephenson
  2:53:47 – 2:55:06

- ❖ Schedule Next Meeting: **09/23/21 @ 1:00pm St. George, Utah area**
  2:55:07 – 2:58:13

- ❖ Adjourn: 2:58:15 – 2:58:31

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Attendance Roster

The following POST Council members were in attendance:
Chief Wade Carpenter, Chairman, Park City Police Department
Colonel Mike Rapich, Superintendent, Utah Highway Patrol
Spencer Austin, Representing Utah Attorney General
Matthew Checketts, PhD. At Large
John Crowley, UPOA Representative
Chief Allen Swanson, Layton City Police Department
Chief Chad Soffe, Utah Chiefs of Police Association
Sheriff Nathan Curtis, Sevier County Sheriff's Office
Victoria McFarland, JD. At Large
Frank Budd, PhD. At Large
Jeanetta Williams, At Large
Executive Director Brian Nielson, Utah Department of Corrections
Sheriff Cameron Noel, Utah Sheriffs Association

The following POST Council members were excused:
Sheriff Cory Pulsipher, Washington County Sheriff's Office
Bruce Bayley, PhD. Weber State University
Mayor Troy Walker, Incumbent Mayor representative

POST staff present:
Scott Stephenson, Director
Renee Spooner, JD. DPS Legal Counsel representing POST, Asst. Attorney General
Richard Jorgensen, JD. DPS Legal Counsel representing POST, Asst. Attorney General
Julie Gomez, Administrative Secretary
Jaclyn Moore, Investigations Bureau Chief
Alex Garcia, Basic Training Bureau Chief
Dusty Hamlin, Investigations
Dave Barnett, Investigations
James Timpson, Investigations
Austin O'Bray, Investigations
Chris Fielding, POST Media Producer
Camille Zabriskie, Investigations Technician
John Jacobs, POST Technology and Curriculum
Marcus Yockey, POST Curriculum

Others present:
Chief Ken Wallentine
Brandon La Verne
Zechariah Harger
Jack Stephenson
Joe Dougherty
Ben Winslow
Jeremy Harris
Lynda Viti (Remote)
Benjamin Stowell (Remote)
Doug Stowell (Remote)
Cheryl Smith (In-Person)

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Actions and Voting

Approval of March 16, 2021, Minutes:
Spencer Austin: Motion to approve
John Crowley: 2nd
All PC members in attendance voted in favor

Disciplinary Cases:

Elisa Allen (Not Present)
Chad Soffe: Motion to accept POST's recommendation
Allen Swanson: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Zechariah Harger (Present)
Mike Rapich: Motion to accept POST's recommendation
Nathan Curtis: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Michael Hayes (Not Present)
John Crowley: Motion to accept POST recommendation
Frank Budd: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Brandon La Verne (Present)
Allen Swanson: Motion to accept POST's recommendation
Chad Soffe: 2nd
Yea Votes: Austin, Budd, Checketts, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams

Nay Votes:
Recuse: Crowley

Dustin Long (Not Present)
Brian Nielson: Motion to accept POST recommendation
Allen Swanson: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Chris Loveless (Not Present)
Nathan Curtis : Motion to accept POST recommendation
Chad Soffe: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Herson Majano (Present)
Mike Rapich: Motion to accept POST recommendation
John Crowley: Sub-Motion to reject POST recommendation and instead issue a 2.5 year suspension and an approved Fitness for Duty evaluation
Matt Checketts: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Jeremy Miller (Not Present)
Frank Budd: Motion to accept POST's recommendation
Jeanetta Willioams: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Jack Stephenson (Present)
Mike Rapich : Motion to accept POST recommendation
Frank Budd: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Benjamin Stowell (Present)
Allen Swanson: Motion to reject POST's recommendation and instead revoke his certifications
Chad Soffe: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse: McFarland

Taffin Strong (Present)
Chad Soffe: Motion to accept POST's recommendation
Spencer Austin: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Nielsen, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse: Noel

Recuse: POST Council atty Richard Jorgenson

Richard Taylor (Not Present)
Chad Soffe: Motion to reject POST's recommendation and instead issue a 1-year suspension
Nathan Curtis: 2nd
Chad Soffe: Sub-Motion to reject POST's recommendation and instead issue a 2-year suspension with an approved Fitness for Duty evaluation
Jeanetta Williams: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Agustin Torres (Not Present)
Spencer Austin: Motion to accept POST's recommendation
Victoria McFarland: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Soffe, Swanson and Williams
Nay Votes:
Recuse: Rapich

James Vance (Not Present)
Cameron Noel: Motion to accept POST's recommendation
Nathan Curtis: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Noel, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Inservice Annual Training Hours Requirement Discussion:

Nathan Curtis: Motion to remove proration (POST will not prorate hours for partial year employment)
Allen Swanson: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Nielson, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse: Noel

Use of Force Policy:

Chad Soffe: Motion to change to Administrative Rule
Spencer Austin: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Nielson, Noel, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

K-9 Policy:

Chad Soffe: Motion to add a line under (2)(a) to include language stating POST director may approve other K-9 programs that meet the qualifications
Spencer Austin: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Nielson, Noel, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Medical Marijuana and Law Enforcement:

Brian Nielson: Motion to move this agenda item forward
Chad Soffe: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Nielson, Noel, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse:

Dispatch Qualifications:

Allen Swanson: Motion to continue to require EMD. The NIMS and BCI will be completed on the local level.
Chad Soffe: 2nd
Yea Votes: Austin, Budd, Checketts, Crowley, Curtis, McFarland, Nielson, Noel, Rapich, Soffe, Swanson and Williams
Nay Votes:
Recuse

Schedule next meeting: September 23, 2021 at 1:00 pm in Santa Clara, Utah